



FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

6 messages

Wilbur William Matthee <info@ethichawks.co.za>
To: David.Esau@labour.gov.za, Fezeka.Ngalo@labour.gov.za
Cc: PublicProtector@ombudsman.org.za, complaints@sahrc.org.za
Bcc: " <wilburmat@gmail.com>

Tue, 14 Apr 2026 at 14:25

Dear Mr. Esau and Ms. Ngalo,

I refer to the integrated inspection allocated on 16 February 2026. Despite my repeated follow-ups and the BCEA department's referral to the UIF division, the Department has remained silent for over 60 days. This silence in the face of documented statutory fraud is no longer an "administrative delay"—it is a Deemed Refusal to Act.

I require an immediate Statement of Position on the following three points of law:

The Perjury/Resignation Obstruction: Does the DEL accept an employer's under-oath claim of "voluntary resignation" (Res1) when my formal Notice of Resignation (UI19) explicitly cited Automatically Unfair Constructive Dismissal due to a protected disclosure? By failing to intervene, the DEL is allowing a false narrative to block my constitutional right to social security.

The Service Certificate Misrepresentation: The employer has issued a Certificate of Service (CERT1) that misrepresents the nature of my departure and suppresses the occupational detriment I faced. I demand a Compliance Order to compel the correction of this statutory document.

The UIF Non-Remittance (Criminality): My June 2025 records (and others) confirm deductions were made from my salary but never remitted to the Fund. This is theft of statutory levies. Does the UIF department intend to prosecute this non-compliance, or is the whistleblower expected to bear the cost of the employer's criminality?

I am a Specialist Registered Nurse (NQF 8) currently homelessness and a medically documented PTSD collapse (MED1) because I am being denied access to my own security funds. Your department's inaction is the primary driver of this human rights violation.

If I do not receive a Case Reference Number and a Compliance Order regarding the June 2025 UIF gap by Thursday, 16 April 2026, at 14:30, I will:

Initiate an Urgent Mandamus Application in the High Court to compel the Department to perform its statutory duties.

Submit this entire chain of ignored correspondence to Daily Maverick and AmaBhungane as evidence of institutional failure.

Silence is no longer an option. The law requires you to act.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za

4 attachments

 **MED1 - letter to employer.pdf**
417 KB

-  **RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf**
153 KB
-  **CERT1 (Matthee WW Certificate of Service (1).pdf**
150 KB
-  **UI 19- Medscheme -Matthee W (1).pdf**
117 KB

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: info@ethichawks.co.za

Tue, 14 Apr 2026 at 14:25



Message blocked

Your message to **PublicProtector@ombudsman.org.za** has been blocked. See technical details below for more information.

The response from the remote server was:
550 blocked

<postmaster@labour.gov.za>
To: info@ethichawks.co.za

Tue, 14 Apr 2026 at 14:31



Your message to David.Esau@labour.gov.za couldn't be delivered.

David.Esau wasn't found at labour.gov.za.

info	Office 365	David.Esau
Action Required		Recipient
Unknown To address		

How to Fix It

The address may be misspelled or may not exist. Try one or more of the following:

- Send the message again following these steps: In Outlook, open this non-delivery report (NDR) and choose **Send Again** from the Report ribbon. In Outlook on the web, select this NDR, then select the link **"To send this message again, click here."** Then delete and retype the entire recipient address. If prompted with an Auto-Complete List suggestion don't select it. After typing the complete address, click **Send**.

- Contact the recipient (by phone, for example) to check that the address exists and is correct.
- The recipient may have set up email forwarding to an incorrect address. Ask them to check that any forwarding they've set up is working correctly.
- Clear the recipient Auto-Complete List in Outlook or Outlook on the web by following the steps in this article: [Fix email delivery issues for error code 5.1.10 in Office 365](#), and then send the message again. Retype the entire recipient address before selecting **Send**.

If the problem continues, forward this message to your email admin. If you're an email admin, refer to the **More Info for Email Admins** section below.

Was this helpful? [Send feedback to Microsoft](#).

More Info for Email Admins

Status code: 550 5.1.10

This error occurs because the sender sent a message to an email address hosted by Office 365 but the address is incorrect or doesn't exist at the destination domain. The error is reported by the recipient domain's email server, but most often it must be fixed by the person who sent the message. If the steps in the **How to Fix It** section above don't fix the problem, and you're the email admin for the recipient, try one or more of the following:

The email address exists and is correct - Confirm that the recipient address exists, is correct, and is accepting messages.

Synchronize your directories - If you have a hybrid environment and are using directory synchronization make sure the recipient's email address is synced correctly in both Office 365 and in your on-premises directory.

Errant forwarding rule - Check for forwarding rules that aren't behaving as expected. Forwarding can be set up by an admin via mail flow rules or mailbox forwarding address settings, or by the recipient via the Inbox Rules feature.

Recipient has a valid license - Make sure the recipient has an Office 365 license assigned to them. The recipient's email admin can use the Office 365 admin center to assign a license (Users > Active Users > select the recipient > Assigned License > Edit).

Mail flow settings and MX records are not correct - Misconfigured mail flow or MX record settings can cause this error. Check your Office 365 mail flow settings to make sure your domain and any mail flow connectors are set up correctly. Also, work with your domain registrar to make sure the MX records for your domain are configured correctly.

For more information and additional tips to fix this issue, see [Fix email delivery issues for error code 5.1.10 in Office 365](#).

Original Message Details

Created Date: 4/14/2026 12:25:36 PM

Sender Address: info@ethichawks.co.za

Recipient Address: David.Esau@labour.gov.za

Subject: FINAL DEMAND: 48-Hour Notice of
Administrative Deadlock – Ref: Integrated
Inspection [Medscheme/AfroCentric] – [890903
5151 087]

Error Details

Error: 550 5.1.10 RESOLVER.ADR.RecipientNotFound;
Recipient [David.Esau@labournational.
mail.onmicrosoft.com](#) not found by SMTP
address lookup

Message rejected by: [CP7P275MB2075.ZAFP275.PROD.
OUTLOOK.COM](#)

Notification Details

Sent by: [CP7P275MB2075.ZAFP275.PROD.OUTLOOK.COM](#)

Message Hops

HOP	TIME (UTC)	FROM	TO	WITH	RELAY TIME
1	4/14/2026 12:25:36 PM	224054973946 named unknown	gmailapi.google.com	HTTPREST	*
2	4/14/2026 12:25:36 PM	224054973946 named unknown	gmailapi.google.com	HTTPREST	*
3	4/14/2026 12:25:41 PM		mail-qt1-f173.google.com	SMTP	5 sec
4	4/14/2026 12:25:44 PM	mail-qt1-f173.google.com	securemail-pl-mx8.synaq.com	esmtps (TLS1.3) tls TLS_AES_256_GCM_SHA384 (Exim 4.95) (envelope-from < info@ethichawks.co.za >)	3 sec
5	4/14/2026 12:25:44 PM	securemail-pl-mx8.synaq.com	securemail-pl-ix8.synaq.com	esmtps (Exim 4.95) (envelope-from < info@ethichawks.co.za >)	*
6	4/14/2026 12:25:59 PM	securemail-pl-mx8.synaq.com	JN1PEPF00001EDD.mail. protection.outlook.com	Microsoft SMTP Server (version=TLS1_3, cipher=TLS_AES_256_GCM_SHA384)	15 sec
7	4/14/2026 12:26:01 PM	JN1PEPF00001EDD.ZAFP275.PROD. OUTLOOK.COM	JN3P275CA0051.outlook. office365.com	Microsoft SMTP Server (version=TLS1_3, cipher=TLS_AES_256_GCM_SHA384)	2 sec
8	4/14/2026 12:26:01 PM	JN3P275CA0051.ZAFP275.PROD. OUTLOOK.COM	JNAP275MB2468.ZAFP275.PROD. OUTLOOK.COM	Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_ 256_GCM_SHA384)	*
9	4/14/2026 12:31:19 PM	CT2P275CU008.outbound. protection.outlook.com	ZADOLDRDAG193.resource.labour. net	Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_ 256_GCM_SHA384)	5 min, 18 sec
10	4/14/2026 12:31:19 PM	ZADOLDRDAG193.resource.labour. net	ZADOLDRDAG193.resource.labour. net	Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_ 256_GCM_SHA384)	*
11	4/14/2026 12:31:35 PM	ZADOLDRDAG193.resource.labour. net	JN2ZAF01FT015.mail.protection. outlook.com	Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_ 256_GCM_SHA384)	16 sec

12	4/14/2026 12:31:35 PM	JN2ZAF01FT015.eop-zaf01.prod.protection.outlook.com	JN3P275CA0111.outlook.office365.com	Microsoft SMTP Server (version=TLS1_3, cipher=TLS_AES_256_GCM_SHA384)	*
13	4/14/2026 12:31:35 PM	JN3P275CA0111.ZAFP275.PROD.OUTLOOK.COM	CP7P275MB2075.ZAFP275.PROD.OUTLOOK.COM	Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384)	*

Original Message Headers

Received: from JN3P275CA0111.ZAFP275.PROD.OUTLOOK.COM (2603:1086:0:cf::16) by CP7P275MB2075.ZAFP275.PROD.OUTLOOK.COM (2603:1086:100:45::10) with Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384) id 15.20.9769.48; Tue, 14 Apr 2026 12:31:35 +0000

Received: from JN2ZAF01FT015.eop-zaf01.prod.protection.outlook.com (2603:1086:0:cf:cafe::7a) by JN3P275CA0111.outlook.office365.com (2603:1086:0:cf::16) with Microsoft SMTP Server (version=TLS1_3, cipher=TLS_AES_256_GCM_SHA384) id 15.20.9769.48 via Frontend Transport; Tue, 14 Apr 2026 12:31:35 +0000

Authentication-Results: spf=none (sender IP is 164.151.129.36) smtp.mailfrom=ethichawks.co.za; dkim=fail (body hash did not verify) header.d=ethichawks-co-za.20251104.gappssmtp.com; dmarc=none action=none header.from=ethichawks.co.za;

Received-SPF: None (protection.outlook.com: ethichawks.co.za does not designate permitted sender hosts)

Received: from ZADOLDRDAG193.resource.labour.net (164.151.129.36) by JN2ZAF01FT015.mail.protection.outlook.com (10.233.220.78) with Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384) id 15.20.9818.20 via Frontend Transport; Tue, 14 Apr 2026 12:31:35 +0000

Received: from ZADOLDRDAG193.resource.labour.net (10.135.220.100) by ZADOLDRDAG193.resource.labour.net (10.135.220.100) with Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384) id 15.2.1544.25; Tue, 14 Apr 2026 14:31:19 +0200

Received: from CT2P275CU008.outbound.protection.outlook.com (40.93.75.29) by ZADOLDRDAG193.resource.labour.net (10.135.220.193) with Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384) id 15.2.1544.25 via Frontend Transport; Tue, 14 Apr 2026 14:31:19 +0200

ARC-Seal: i=2; a=rsa-sha256; s=arcselector10001; d=microsoft.com; cv=fail; b=ELj1BNu2QFSUmFXAWhki3w9ANbnczD6poM0hmBE1t4UJZYeg4XvPrpUep6H6tHFL10gbINIp7YbagWrvHeuxZySZB1N0HaKUVpPa6SW3DYfB+spU0t9Jum0EWxNcbY+iOCJC/q7ReEcD72kf8mer3/itpJueMDBoYlZwW4ocb1I8UiYBKmM3oE/JAgzMPcfqEA2l9UIiEbZ/HwT/zVCyF+h3zWi2xN1yuCRIV1N05K5R4eHaleWroQ0862H9M86C1WNVgGn5Uun00/A4gVwfzmNerYwJWvkM85L0Dk/gMneU9GJT9AqjJY5zLVQbm0d8Xr3Hfj2cg5SxXmaJ2M57vA==

ARC-Message-Signature: i=2; a=rsa-sha256; c=relaxed/relaxed; d=microsoft.com; s=arcselector10001; h=From:Date:Subject:Message-ID:Content-Type:MIME-Version:X-MS-Exchange-AntiSpam-MessageData-ChunkCount:X-MS-Exchange-AntiSpam-MessageData-0:X-MS-Exchange-AntiSpam-MessageData-1; bh=//N/60Bi+lbflC0IndZxehDBldZ0U5/gaNaXRJLEmV4; b=vlvqU+9lU6r+7XAcw8QMgfmiVWh3u6nuoC3GJDikXicwdZZK/Pp/M7l8Vi+obtZ+Q0mou5rtaf/V1Yex/qpbJgMkWD+9AWJUZY1NwwPyOWgGDB3Gdnmtsdx53lrWvx2eePBl0k9kwnVKM4ZxgljUKgAZAatrqT0pGkA/YvPA0wgFaew0RhrqQHsJMOvtCAH1BU20wBblbdp+Q7Arm1LKzQLEJFvbb1rAdFd1Fq96l/eDYtjvNSQjXfTp4k1XPaSh+mog0ivP9HbpWlYkw14SgN5btrku9RubbxKegv09bba+mwfP4aSyRtnhh7KffwsfYmRp1orG1qHugaAqa9J0hgQ==

ARC-Authentication-Results: i=2; mx.microsoft.com 1; spf=none (sender ip is 196.35.198.148) smtp.rcpttodomain=labour.gov.za smtp.mailfrom=ethichawks.co.za; dmarc=none action=none header.from=ethichawks.co.za; dkim=fail (body hash did not verify) header.d=ethichawks-co-za.20251104.gappssmtp.com; arc=fail (47)

Received: from JN3P275CA0051.ZAFP275.PROD.OUTLOOK.COM (2603:1086:0:cc::19) by JNAP275MB2468.ZAFP275.PROD.OUTLOOK.COM (2603:1086:0:a0::5) with Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384) id 15.20.9769.48; Tue, 14 Apr 2026 12:26:01 +0000

Received: from JN1PEPF00001EDD.ZAFP275.PROD.OUTLOOK.COM (2603:1086:0:cc:cafe::dc) by JN3P275CA0051.outlook.office365.com (2603:1086:0:cc::19) with Microsoft SMTP Server (version=TLS1_3, cipher=TLS_AES_256_GCM_SHA384) id 15.20.9769.48 via Frontend Transport; Tue, 14 Apr 2026 12:26:01 +0000

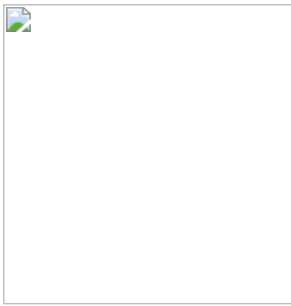
Authentication-Results-Original: spf=none (sender IP is 196.35.198.148) smtp.mailfrom=ethichawks.co.za; dkim=fail (body hash did not verify) header.d=ethichawks-co-za.20251104.gappssmtp.com; dmarc=none action=none header.from=ethichawks.co.za; compauth=none reason=405

Received-SPF: None (protection.outlook.com: ethichawks.co.za does not designate permitted sender hosts)

Received: from securemail-pl-mx8.synaq.com (196.35.198.148) by JN1PEPF00001EDD.mail.protection.outlook.com (10.167.240.22) with Microsoft

SMTP Server (version=TLS1_3; cipher=TLS_AES_256_GCM_SHA384) id 15.20.9769.17
via Frontend Transport; Tue, 14 Apr 2026 12:25:59 +0000
Received: from securemail-pl-mx8.synaq.com ([196.35.198.148])
by securemail-pl-ix8.synaq.com with esmtps (Exim 4.95)
(envelope-from <info@ethichawks.co.za>)
id 1wCbNS-000248-Sh;
Tue, 14 Apr 2026 14:25:44 +0200
Received: from mail-qt1-f173.google.com ([209.85.160.173])
by securemail-pl-mx8.synaq.com with esmtps (TLS1.3) tls
TLS_AES_256_GCM_SHA384
(Exim 4.95)
(envelope-from <info@ethichawks.co.za>)
id 1wCbNR-0001t2-5H
for David.Esau@labour.gov.za;
Tue, 14 Apr 2026 14:25:44 +0200
Received: by mail-qt1-f173.google.com with SMTP id d75a77b69052e-
50baafd6c4aso57756871cf.1
for <David.Esau@labour.gov.za>; Tue, 14 Apr 2026 05:25:41 -0700 (PDT)
ARC-Seal: i=1; a=rsa-sha256; t=1776169540; cv=none;
d=[google.com](https://www.google.com); s=arc-20240605;
b=Gw9dRoqC4RB8+CeKqek+uuu/txxBG0Q+a2/SibysrF2QfM02mMyx2mkPzg+CGkuPIz
p8F8XtB3IOGVFqCS099Jws1YjvELF83xiqZPzeJGZR9n9zrL/EoScky8nc6rMzKNNK08
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mTQAG7Sm1wOXzX2eWxkbCmHanZL4CDzqIuPmS39BIXXwYWS7IhaPa3jXXC4NFh+Xp+s
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/TjQ==
ARC-Message-Signature: i=1; a=rsa-sha256; c=relaxed/relaxed; d=[google.com](https://www.google.com); s=arc-
20240605;
h=cc:to:subject:message-id:date:mime-version:references:from
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bh=Wcf4/cd3BVsnNeu8PiURfMY0h2W4/qSEonVzRXBJN0g=;
fh=bQkC8txg/OJ6VyrftgncdhG3FXLEOPDTCv20QvyPt4=;
b=ZLNU52hAtXn1Iy0zi3ryKh70QAxHYZhjT2iI00r6MRHwcqbvKdecAMAYihOQKtu+IC
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1HgsVD53Ypv13ZZyLzG1TPASXYzYWL/LrKmqPBgEqq4bRQjc6NPL0cqQb9l2vFQqmDL/
P63UwTmZ85yZvtjGIxhuNX4MnmsXGQaWVBWCJkgtvwfPW0BmCL55gx0CDgTQH6s1hYku
hODw==;
darn=labour.gov.za
ARC-Authentication-Results: i=1; [mx.google.com](https://www.google.com); arc=none
DKIM-Signature: v=1; a=rsa-sha256; c=relaxed/relaxed;
d=ethichawks-co-za.20251104.gappssmtp.com; s=20251104; t=1776169540;
x=1776774340; darn=labour.gov.za;
h=cc:to:subject:message-id:date:mime-version:references:from:from:to
:cc:subject:date:message-id:reply-to;
bh=Wcf4/cd3BVsnNeu8PiURfMY0h2W4/qSEonVzRXBJN0g=;
b=owd1CMWUPQrOKCAkXFKV1HIW3NzKUtaEIYAJE1965W60Qs5nE60xDRpQs4dfLcqr26
/KU1ciDEwjKLJ2c2bsQ7jca9Gjpldz8KSJy0E1sn3k5/CnHqp7HH64QhEO/ps8b/8fwJ
xD7/8XFnr81dFYSGPIQ1DpfzHqb/Bkoupu0u2hhNHN0ExkcsQvcaSAe23pD0sFGURGR
CV9PBjIH4dIvHIAiFyibXCEdF6IpS43Cpv+mYLBmVnBUTFu6hYXG97brWOLMq7iRgAYm
VzyqudomTMYMDKigKsoXNQygr4J6t6wod63VUDtLMCQPeEhQGoHpu+/MFKsnH00b0qYB
4TbQ==
X-Google-DKIM-Signature: v=1; a=rsa-sha256; c=relaxed/relaxed;
d=[1e100.net](https://www.1e100.net); s=20251104; t=1776169540; x=1776774340;
h=cc:to:subject:message-id:date:mime-version:references:from:x-gm-gg
:x-gm-message-state:from:to:cc:subject:date:message-id:reply-to;
bh=Wcf4/cd3BVsnNeu8PiURfMY0h2W4/qSEonVzRXBJN0g=;
b=IpbFirZn26DB/koplaUV0pibVzS1VnKgSSvrtFcLRxd5hofPHXQMDB9LcGEv/1o1Ee
l4twB7/AqWRwieboXPyDukjZpUDLA+oj+Iq9fDp7ggTLPpQqupaPr9u+AUyERY6nvaRN
mf6XjEnr9ae4UcBwG6VNf0XCdVGch5LYb4tjKh0Z0ABDv75ZIJAdQppIuFRQbgJZ5r2
vu3IXzLymNvPT4WaTlX7nh+Yx+uCFgcNbRVPZ1xTzWSGZYX6hYeOsPQXNnB6izpfDvHR
R1o5g0dfuNsG/UuBBKyk6l1Um59BH0kpyoPK1lAbA00E0bw1zU28LucJSN2d2YVxUpAe
DXOA==
X-Gm-Message-State: A0Ju0YyogQA6eNDACSOvYporBJMi+qAckIh1CLMcB7hStMOLIEmJybB
ET5fP2WeTvcwvFSGQC1+71gxIp71/i8KBLpezCEc4lQINTRIzDWe8KA1jkrvqMscx9+QUvRF7eb
cadzZ+qhaLKrstefKQSJ5SMBHAbfJqplbe+VJFI4531pkASGZNmDRQ==
X-Gm-Gg: AeBDiesxsRzv55PbtqBOZpxPXyALmHL6AaSyAnvqE7w1QnTUwPi5mQcfXrNXGnyf33l
VolWt4dfzG9zhpMqajLCHHnXVivR2UDTcJg1nv/Wg8Eu8nvqM+67R3Q5kE+xG+VoUZ77CjsMNpL
eyisvpf2Db45AASeCymSxSimosNKQmk0bUjoDukiDiivq7+K0Ijp/p7Vvs95g00UXLbXt7Zxyp2
4BEsS3W10WGIYoXhQKwbJH+pQZk7PYwI08tpRzCu4VoCr9Zrx0s0zZHZS9Hcvm4qdwubEQd+M/9
zeylY/WQK8vIbC6q7f0tWcjLfMA=
X-Received: by 2002:a05:6214:3d0d:b0:8ac:b0ef:47a5 with SMTP id
6a1803df08f44-8acb0ef4b53mr103101276d6.35.1776169539128; Tue, 14 Apr 2026
05:25:39 -0700 (PDT)
Received: from 224054973946 named unknown by gmailapi.google.com with
HTTPREST; Tue, 14 Apr 2026 05:25:36 -0700
Received: from 224054973946 named unknown by gmailapi.google.com with
HTTPREST; Tue, 14 Apr 2026 05:25:36 -0700

From: Wilbur William Matthee <info@ethichawks.co.za>
References: <330995bb8a.d076@mailsuite.com>
MIME-Version: 1.0
Date: Tue, 14 Apr 2026 05:25:36 -0700
X-Gm-Features: AQROBzCHYtnX6TxMRYVgDnyigDcokkdjZ0gqZyi9r52c_Xes-2XuZs1MZehPKu0
Message-ID: <CAHJfpyQoXMnEQmiCeUmoybHG015ujMEFQJ6BEBa_LMR=_hGe-Q@mail.gmail.com>
Subject: =?UTF-8?Q?FINAL_DEMAND=3A_48=2DHour_Notice_of_Administrative_Deatl?=
=?UTF-8?Q?ock_=E2=80=93_Ref=3A_Integrated_Inspection_=
5BMedscheme=2FAfroCentric=5D_?=
=?UTF-8?Q?_=E2=80=93_=5B890903_5151_087=5D?=
To: David.Esau@labour.gov.za, Fezeka.Ngalo@labour.gov.za
CC: PublicProtector@ombudsman.org.za, complaints@sahrc.org.za
Content-Type: multipart/mixed; boundary="00000000000071943e064f6ab2ff"
X-IS-SYNAQ-MX: mail-qt1-f173.google.com ([209.85.160.173])
X-SYNAQ-Pinpoint-Information: Please contact Internet Solutions for more information
X-SYNAQ-Pinpoint-ID: 1wCbNS-000248-Sh
X-SYNAQ-Pinpoint: No virus infections found
X-SYNAQ-Pinpoint-SpamScore: ss
X-Pinpoint-From: info@ethichawks.co.za
X-Spam-Flag: NO
X-Linkshield: 2026-04-14T12:26:00Z;h="mx8";v="0.9.45";i="1wCbNS-000248-Sh";
Return-Path: info@ethichawks.co.za
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[LINKSHIELD PROTECTED] www.ethichawks.co.za

4 attachments

-  **MED1 - letter to employer.pdf**
417 KB
-  **RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf**
153 KB
-  **CERT1 (Matthee WW Certificate of Service (1)).pdf**
150 KB
-  **UI 19- Medscheme -Matthee W (1).pdf**
117 KB

Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za> Wed, 15 Apr 2026 at 14:55
To: info@ethichawks.co.za <info@ethichawks.co.za>
Cc: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>, Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Good afternoon Mr\Mrs\Ms William Matthee

Thank you for registering your complaint with the Department of Employment and Labour, however, I regret to inform you that DEL does not have jurisdiction on dismissal issues and your case is that of Constructive Dismissal which falls under CCMA. In the light of that I will recommend that you refer your matter to CCMA.

Thanking you in advance, hoping that this clarity will be considered favourable

Regards

Cebo Kutuka | Principal Inspector-BCEA & NMW | Provincial Office: Western Cape |

| Room 621, 9 Long Street, Cape Town, 8001|

Tel  Description: cid:image001.png@01CBDE41.60315F40 +27 21 441 8000 |Mobile

 Description: cid:image002.png@01CBDE41.60315F40 +27 82 7894749|

 Description: cid:image004.png@01CBDE41.60315F40 cebo.kutuka@labour.gov.za |

 Description: cid:image005.png@01CBDE41.60315F40 www.labour.gov.za

 cid:image006.png@01D551BF.8607A8F0

 cid:image002.png@01D70AA4.3CAB90F0

From: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@LABOUR.gov.za>

Sent: Wednesday, 15 April 2026 12:35

To: Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>; Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Subject: FW: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection

[Medscheme/AfroCentric] – [890903 5151 087]

Dear colleagues

The mail below and the attached document bears reference, can you kindly allocate this case for investigation.

Thank you in advance.

Kind Regards

Fezeka Ngalo |Specialist: Occupational health and safety | Provincial Office: Western Cape |

| Room 626, 9 Long Street, Cape Town, 8001|

Tel Description: cid:image001.png@01CBDE41.60315F40 +27 21 441 8094 |Mobile
Description: cid:image002.png@01CBDE41.60315F40 +27 82 791 6244| Fax Description: cid:image003.png@01CBDE41.60315F40
|
Description: cid:image004.png@01CBDE41.60315F40 fezeka.ngalo@labour.gov.za |
Description: cid:image005.png@01CBDE41.60315F40 www.labour.gov.za
cid:image006.png@01D551BF.8607A8F0

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Tuesday, 14 April 2026 14:26
To: David.Esau@labour.gov.za ; Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@LABOUR.gov.za>
Cc: PublicProtector@ombudsman.org.za ; complaints@sahrc.org.za
Subject: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

Dear Mr. Esau and Ms. Ngalo,

[Quoted text hidden]

4 attachments

-  **MED1 - letter to employer.pdf**
417 KB
-  **RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf**
153 KB
-  **CERT1 (Matthee WW Certificate of Service (1).pdf**
150 KB
-  **UI 19- Medscheme -Matthee W (1).pdf**
117 KB

Wilbur William Matthee <info@ethichawks.co.za> Wed, 15 Apr 2026 at 15:30
To: Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>
Cc: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>, Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>
Bcc: " <wilburmat@gmail.com>

Dear Mr. Kutuka,

Your response, notably addressed to a genetic 'Mr/Ms/Mrs,' confirms a failure to apply your mind to the basic facts of this case, including the identity of the complainant and the evidence provided. This lack of administrative mindfulness is reflected in your recommendation, which is a material misdirection of law.

Your recommendation to refer this matter to the CCMA is a material misdirection of law.

Jurisdiction: While the CCMA handles the dismissal, the UIF Act (Section 64) and the BCEA grant the DEL exclusive jurisdiction over the submission of fraudulent information to the state.

I have reported that the employer submitted a UI-19 citing "Voluntary Resignation" despite being served with a Notice of Automatically Unfair Constructive Dismissal. This is a Statutory Fraud intended to obstruct my access to the UIF fund—a criminal offense under the UIF Act.

Your refusal to investigate this fraud because it "looks like a dismissal" is an act of Administrative Abandonment.

You are hereby served with a final 24-hour window to align with your colleague, Fezeka Ngalo (Provincial Specialist: OHS), who has already correctly allocated this case for investigation (Ref: 890903 5151 087) remains 13:30. Failure to confirm that the UI-19 fraud will be part of the integrated inspection will result in your name being cited personally in the Writ of Mandamus as an official refusing to perform a statutory duty.

I remain finished with silence.

Yours Professionally

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za

[Quoted text hidden]

Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>
To: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>
Cc: Wilbur William Matthee <info@ethichawks.co.za>

Wed, 15 Apr 2026 at 23:31

Good day Ms Ngalo

I guess this matter is closed from the BCEA side. The complainant has submitted a resignation letter to the employer citing constructive dismissal. For that s\he has to prove that at CCMA.

Won't respond to personal attacks.

Regards

Cebo Kutuka | Principal Inspector-BCEA & NMW | Provincial Office: Western Cape |

| Room 621, 9 Long Street, Cape Town, 8001|

Tel 📞 +27 21 441 8000 |Mobile 📱 +27 82 7894749|

✉ cebo.kutuka@labour.gov.za | www.labour.gov.za

Wearing a mask properly is of life-saving importance. You must wear your masks at all times when outside of your home. There can be no exceptions.

- You must avoid crowded and confined spaces at all costs. This is where super-spreader events take place.
- You must ensure there is good ventilation at all times whenever you're in public. The virus droplets spread by air in confined spaces, and so fresher is better.
- You must wash your hands regularly with soap and water or use sanitiser.
- If you feel sick, you should not leave your home unless it is to get healthcare treatment. You must first call our hotline on 080 928 4102 for guidance on the next steps.
- You should also not visit someone who is sick, and find other ways to provide support, like delivering a meal to a neighbour's doorstep.

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